

02:00 PM

25-CIV-07711 TRANSMED7, LLC, ET AL. VS. EDGAR STAREN, M.D., PH.D., MBA, ET AL.

LINE 7

TRANSMED7, LLC
EDGAR STAREN, M.D., PH.D., MBA

SUSANNAH K. HOWARD

MOTION / PETITION TO COMPEL ARBITRATION (*WITH RELATED CASE: 25CIV07589*)

TENTATIVE RULING:

Off calendar per stipulated Order.

**UD LAW AND MOTION CALENDAR
MONDAY, JULY 27, 2026**

02:00 PM

24-UDU-00963 KFF CETUS LLC VS. LEANDRO CASSIUS CASTROVIEJO

LINE 8

KFF CETUS LLC
LEANDRO CASSIUS CASTROVIEJO

STEPHANIE MARGOSSIAN
MARIO FAUSTO

MARIO FAUSTO'S MOTION TO BE RELIEVED AS COUNSEL FOR DEFENDANT

TENTATIVE RULING:

The unopposed motion of Mario Fausto to be relieved as counsel for defendant, Leandro Cassius Castroviejo, is GRANTED but is effective until no earlier than August 5, 2026 **and** after a proof of service on the client of a copy of the signed order (which will be issued on July 27, 2026), has been filed with the court.

Rules of Professional Conduct, rule 1.16(d), provides that an attorney shall not withdraw until he has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel. Here, a Notice of Settlement was filed on April 4, 2025. An OSC re dismissal is set on August 4, 2026. Granting the motion effective prior to August 4, 2026 will leave defendant without counsel for the OSC hearing.

And, pursuant to California Rules of Court, rule 3.1362, subdivision (e), the order also does not become effective until proof of service on the client of a copy of the signed order (which will be issued on July 27, 2026), has been filed with the court.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-UDL-00636 ZIJING LIU VS. STEPHEN F. POWELL

LINE 9

ZIJING LIU
STEPHEN F. POWELL

PRO PER
PRO PER

DEFENDANT STEPHEN POWELL'S MOTION TO SET ASIDE DEFAULT/JUDGMENT

TENTATIVE RULING:

The Motion to Set Aside the Default Judgment by Defendant Stephen F. Powell ("Defendant") is DENIED. Defendant failed to file a proof of service with this Motion showing he properly served Plaintiff. Defendant's Motion also fails to comply with California Rules of Court, rule 3.1112(a), because it does not include a notice of hearing for the Motion and a memorandum. Even if the construed Defendant's "Motion" as a memorandum, Defendant fails to cite any legal authority pursuant to which he seeks relief. (See Cal. Rules of Court, rule 3.1113(b) ["The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced."].) It appears Defendant may be seeking relief under Code of Civil Procedure section 473, subdivision (b), but if so, Defendant has not provided a copy of his proposed answer as required. (See Code Civ. Proc., § 473, subd. (b).). He also fails to provide sufficient evidence to rebut the presumption he was properly served.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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